

## 25STCV16512 25STCV16512

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 25STCV16512 Hearing Date: June 23, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MELANIE

MCMICHAEL, an individual,

Plaintiff,

vs.

WALDORF

ASTORIA EMPLOYER, LLC, a Delaware limited liability company; LINDA JONES, an

individual, and DOES 1 through 50,

Defendants.

Case No.:

25STCV16512

Hearing

Date:

June 23,

2026

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR LEAVE

TO FILE AMENDED COMPLAINT AND DEFENDANT'S MOTION TO COMPEL ARBITRATION

#### I. BACKGROUND

On June 6, 2025, plaintiff Melanie

McMichael (Plaintiff) filed a Complaint against Waldorf Astoria

Employer, LLC (Waldorf) and Linda Jones (Jones) (collectively

Defendants) alleging meal and rest period violations, reimbursement

for business-related expenses, unpaid overtime, denying Plaintiff's

requests for accommodation to take time off to assist Plaintiff's mother

during chemotherapy sessions, whistleblowing on accounting fraud, and

wrongful termination.

On February 24, 2026, Defendants filed a motion to

compel arbitration and to stay the matter.

On March 3, 2026, Plaintiff filed an opposition

and a motion for leave to amend the complaint to include additional causes of action arising from new allegations of sexual harassment. In opposition to the motion to compel arbitration, Plaintiff argued that because of these new claims, Defendants could not compel arbitration under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). (Opp. to MTC, p. 1:2-13.)

On March 10, 2026, Defendants filed a reply.

On March 17, 2026, Defendant's motion to compel arbitration came before Honorable Judge Tiana J. Murillo for hearing in Department 78. Defendants submitted to the Court's tentative ruling granting the motion. Plaintiff requested leave to amend the complaint. The Court expressed concern with the timing of Plaintiff's request for leave, as noted in its Tentative order, and took the matter under submission.

On March 18, 2026, the Court did not adopt its tentative ruling and continued the hearing on Defendant's motion to compel arbitration to June 23, 2026 to first hear Plaintiff's motion for leave to amend.

Effective May 18, 2026, the case was reassigned to Honorable Judge Alexander C. Giza in Department 730 at the Stanley Mosk Courthouse.

On June 9, 2026, Defendants filed their opposition to Plaintiff's motion for leave to amend. On June 15, 2026, Plaintiff filed a reply, including an untimely, substantive declaration.

## II. OBJECTIONS

Defendants object to Plaintiff's declaration filed with her

reply brief, as improperly raising new evidence in a reply brief. (See *Jay v. Mahaffey* (2013) 218

Cal.App.4th 1522, 1536-38 (declining to consider reply declarations that

"addressed substantive issues in the first instance" rather than filling "gaps

in the evidence created by" an opposition); see also *Richardt v. Hoffman*

(1997) 52 Cal.App.4th 754, 764 ("Points raised for the first time in a reply

brief will ordinarily not be considered, because such consideration would

deprive the respondent of an opportunity to counter the argument.".) SUSTAINED.

## III. LEGAL STANDARD

Motion for Leave to File an

Amended Complaint

Code of Civil Procedure section 473,

subdivision (a)(1) provides, in relevant part: "The court may, in furtherance

of justice, and on any terms as may be proper, allow a party to amend any

pleading or proceeding by adding or striking out the name of any party, or by

correcting a mistake in the name of a party, or a mistake in any other respect;

and may, upon like terms, enlarge the time for answer or demurrer. The court

may likewise, in its discretion, after notice to the adverse party, allow, upon

any terms as may be just, an amendment to any pleading or proceeding in other

particulars; and may upon like terms allow an answer to be made after the time

limited by this code." (Code Civ. Proc., § 473, subd. (a)(1).) This discretion

should be exercised liberally in favor of amendments, for "judicial policy

favors resolution of all disputed matters in the same lawsuit." (Kittredge

Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

"The trial court has discretion to permit or deny the

amendment of the complaint, but instances justifying the court's denial of

leave to amend are rare." (Armenta ex rel. City of Burbank v. Mueller Co., (2006)

142 Cal.App.4th 636, 642.) However, "[a]lthough courts are bound to apply a

policy of great liberality in permitting amendments to the complaint at any

stage of the proceedings, up to and including trial [Citations], this policy

should be applied only 'where no prejudice is shown to the adverse party . .

.' [Citation.] A different result is indicated 'where inexcusable delay and

probable prejudice to the opposing party' is shown. [Citation.]" (Magpali v.

Farmers Group, Inc., (1996) 48 Cal.App.4th 471, 487.)

Under rule 3.1324, subdivision (a) of the California Rules

of Court, a motion to amend a pleading shall (1) include a copy of the proposed

amendment or amended pleading, which must be serially numbered to differentiate

it from previous pleadings or amendments; (2) state what allegations in the

previous pleading are proposed to be deleted, if any, and where, by page,

paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

Under subdivision (b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Id., subd. (b).)

### III. DISCUSSION

#### A. Summary of Arguments

##### Plaintiff

requests leave to file a First Amended Complaint to incorporate additional factual details, refined throughout ongoing investigation, to add three new causes of action arising from the employment relationship between Plaintiff and Defendants, and to add two individual defendants. (Motion, p. 3:4-8.) The proposed additions to the complaint are shown in the redlined copy of the proposed First Amended Complaint attached to the Declaration of Paul T. Cullen (Cullen Declaration). (Motion, p. 3:8-9.) Plaintiff claims granting leave to amend is warranted under California's liberal amendment policy and no prejudice

will result to Defendants because the case is in its early stages, no trial date has been set, and the new claims are based on a more thorough examination of Plaintiff's experiences by her counsel. (Motion, p. 3:10-13.) Plaintiff further contends allowing the amendment to include all plausible claims arising from the same employment relationship may facilitate comprehensive early settlement discussions and promote efficient resolution of the entire dispute. (Motion, p. 3:13-16.)

In opposition Defendants argue Plaintiff's request for leave to amend is a strategic attempt to avoid arbitration under the EFAA. (Opp., p. 2:10-12.) Defendants argue Plaintiff's request is facially deficient and likely time-barred absent any dated allegations supporting her sexual harassment claim and offers no explanation for the nine-month delay in requesting the amendment. (Opp., p. 2:13-15.) Defendants also claim significant and avoidable prejudice would result, as they incurred significant costs in pursuing their motion to compel arbitration based on the pleadings and discussions with counsel. (Opp., p. 2:17-19.) Defendants note that Plaintiff never mentioned a sexual harassment claim before the filing of the instant request and did not receive her right-to-sue letter for the sexual harassment claim until March 2, 2026. (Opp., p. 3:21-22, 4:2-3.) Defendants further argue the motion is procedurally improper, as the supporting declaration provides no information

about when the facts giving rise to the amendment were discovered or why amendment was not sought sooner. (Opp., p. 4:4-6.) Finally, Defendants argue Plaintiffs proposed first amended complaint is inconsistent, reframes causes of action with insufficient factual allegations, and amendment would be futile. (Opp., p. 5:1-7:4.)

#### B. Motion for Leave to File an Amended Complaint

Plaintiff has complied with California Rules of Court, rule 3.1324, subdivision (a). Plaintiff has included a redlined copy of the proposed First Amended Complaint, identifying the location and substance of the proposed additions. (Cullen Decl., Ex. A.)

However, Plaintiff has not sufficiently complied with California Rules of Court, rule 3.1324, subdivision (b). Attached to Plaintiff's motion is the Cullen Declaration, which states the effect of the amendment and why it is necessary, being to add three new causes of action, two new defendants, and new factual allegations arising from the same employment relationship giving rise to the original complaint. (Cullen Decl., ¶ 6.) However, the Cullen Declaration does not state when the facts giving rise to the amended allegations were discovered, nor the reasons why the request for amendment was not made earlier. Plaintiff only offers that these amendments were deemed necessary by her counsel "through ongoing investigation



and review of the facts.” (Cullen Decl., ¶ 6.)

This lack of detail is especially

notable here. While tentative rulings are not binding final rulings of the

Court, the tentative ruling granting Defendant’s motion to compel arbitration

placed Plaintiff on notice of the following concerns: that Plaintiff’s initial

complaint neither states nor implies that there was any sexual harassment, that

no such claim had ever been raised prior to Defendants’ filing of their motion

to compel arbitration, and that Plaintiff offered no explanation demonstrating

diligence or explaining why leave to amend was not sought sooner. (Tentative

Order dated March 17, 2026; Overstreet Decl., Ex. B.; Silverado Modjeska

Recreation & Park Dist. v. County of Orange (2011) 197 Cal.App.4th 282,

300.) Plaintiff was also on notice that the Court noted the request for leave

was made nine months after the Complaint was filed, after Defendants filed

their motion to compel arbitration, and Plaintiff sought a right-to-sue from

the Civil Rights Department only 15 days before the hearing on the matter for

an alleged sexual harassment dating back to May 9, 2022. (Ibid.) The

Court’s tentative ruling stated the timing and factual circumstances giving

rise to Plaintiff’s present request lend support to Defendants’ arguments and permits

a reasonable inference that the requested amendment is strategic. (Ibid.)

Notwithstanding this information, Plaintiff offered no further information or

proof as to why this request was not filed sooner, when the facts giving rise to this request were discovered, or any exercise in diligence in discovering the new causes of actions, defendants, and factual allegations.

“Generally, ‘the trial court has wide

discretion in determining whether to allow the amendment, but the appropriate

exercise of that discretion requires the trial court to consider a number of

factors: “including the conduct of the moving party and the belated

presentation of the amendment. [Citation.] ... The law is well settled that a

long deferred presentation of the proposed amendment without a showing of

excuse for the delay is itself a significant factor to uphold the trial court's

denial of the amendment. [Citation.]’ (Eng v. Brown (2018) 21

Cal.App.5th 706-07 [trial court was rightfully skeptical of a proposed

amendment, in part, when offered without explanation for delay and based on

facts known to the plaintiff at the time of filing the original complaint.].) Even

where an amendment is proposed in proper form, unwarranted delay in presenting

it alone may constitute a valid reason for denial. (Huff v. Wilkins

(2006) 138 Cal.App.4th 732, 746 [denial of amendment upheld, in part because no

explanation was offered for delay in seeking to leave to amend]; see also

Record v. Reason (1999) 73 Cal.App.4th 472, 486-87 [denial of amendment

warranted where movant had knowledge of the circumstances on which the amended

complaint was based at the time of filing].)

The information provided is

procedurally insufficient to satisfy the requirements of California Rules of

Court rule 3.1342(b). Further, there is insufficient information regarding the

reason for the delay in filing to amend. The information added to the proposed

first amended complaint alleges factual allegations known to Plaintiff at the

time the original complaint was filed. Further, none of Plaintiff's filings

establish when these acts took place, when they were discovered by her counsel,

when she became aware of them, or any reason for the nine-month delay in filing

for leave to amend. Plaintiff's counsel explained at the March 17, 2026 hearing

that the delay was a result of his non-diligence in failing to complete a

proper intake of Plaintiff upon being retained. However, delayed discovery of

facts by counsel and known to Plaintiff is not necessarily sufficient to excuse

the delay in filing. (See *Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150,

1159 [amendment to answer denied where counsel's excuse for delay was delayed

discovery of a potential defense and court found unreasonable lack of

diligence].) The Court also notes that notwithstanding Plaintiff's counsel's

claim of failure to properly complete an intake prior to filing the complaint,

Plaintiff's original complaint contains significant factual detail and nineteen

separate causes of action arising from her employment relationship with

Defendants. Furthermore, Defendants have established sufficient information to raise a reasonable inference of bad faith and strategic gamesmanship in filing the present request and prejudice to Defendants in denial of enforcement of the arbitration agreement, which was filed based on information in the complaint and obtained through communications with Plaintiff's counsel, with no rebuttal by Plaintiff to alleviate the Court's concerns.

Plaintiff's untimely declaration filed with the reply is an attempt to address the procedural insufficiency. Even if the Court were to consider the declaration, the Court, in looking at all of the circumstances before it and exercising its discretion, would still deny the motion for leave to amend. Significantly, the motion for leave to amend was brought only after Defendants filed their motion to compel arbitration. The motion for leave to amend seeks to add a sexual harassment cause of action that would may affect the already pending motion to compel arbitration. In addition, the original complaint states nineteen causes of action, but there was no mention of a sexual harassment claim. Also, the motion for leave to amend was brought about nine months after the operative complaint. Furthermore, the declaration includes information uniquely withing the Plaintiff's knowledge, and Plaintiff failed to provide it at the time of her motion for leave to amend. In addition, Plaintiff provides no explanation for her untimely submission of the declaration.

Thus, the Court

DENIES Plaintiff's motion for leave to amend.

#### C. Motion to Compel Arbitration

Because Plaintiff's motion for leave to amend

her complaint is denied, the Court adopts its tentative ruling from March 17,

2026, and Defendant's motion to compel arbitration is GRANTED.

#### IV. CONCLUSION

For the foregoing reasons, Plaintiff's motion for leave to

amend is DENIED.

The Court adopts its March 17, 2026 tentative ruling and Defendant's

motion to compel arbitration is GRANTED.

Moving Party is ordered to give notice.

DATED:

June 23, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer

after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this

tentative ruling, the party must send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.